

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO.2963 OF 2022

In the matter of:

An application under Section 115(1) of the Code of Civil Procedure.

And

Md. Fayek Sikdar

... Petitioners

-Versus-

Kabir Hossain and others

... Opposite parties

Mr. Md. Faizullah, Advocate

.... For the petitioner.

Mr. Md. Tayeed Uddin Khan, Advocate

.... For the opposite parties.

Heard and Judgment on 27.08.2024.

This Rule was issued calling upon the opposite parties to show cause as to why the judgment and order dated 08.02.2022 passed by the Additional District Judge, Pirojpur in Misc. Appeal No.25 of 2019 dismissing the appeal and thereby affirming the impugned judgment and order dated 31.10.2019 passed by the learned Assistant Judge, Nazipur, Pirojpur in Misc. Case No.11 of 2015 rejecting the application filed by the petitioner under Order IX, Rule 13 of the Code of Civil Procedure, 1908 for setting aside the ex-parte decree and or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that opposite party Nos.1-5 as petitioners instituted Miscellaneous Case No.4 of 2011 under Section 96 of the State Acquisition and Tenancy Act for pre-emption on 31.08.2014 against registered kabala deed dated 28.10.2010 executed by opposite party No.2 in favour of opposite party No.1 transferring disputed 54 decimals land. Opposite party No.1 entered appearance above Miscellaneous case and filed a written objection on 16.02.2012 but opposite party No.1 abandoned above case and the same was allowed ex-parte on 31.08.2014.

On 23.07.2015 above opposite party No.1 as petitioner filed Miscellaneous case No.11 of 2015 under Order 9 Rule 13 of the Code of Civil Procedure for setting aside above ex-parte order which was dismissed on contest on 31.10.2016.

Being aggrieved by and dissatisfied with above judgment and order above petitioner as appellant preferred Miscellaneous Appeal No.25 of 2019 to the District Judge, Pirojpur who dismissed above appeal and affirmed the judgment and order of the trial Court.

Being aggrieved by above judgment and order of the learned District Judge above appellant as petitioner moved to this Court and obtained this Rule.

Mr. Md. Faizullah, learned Advocate for the petitioner submits that the petitioner became sick on 05.06.2014 being inflicted by Hepatitis-B virus and received treatment during 05.06.2014 to 20.07.2015 under Dr. Sheikh Faruk Ahmed. Due to above sickness the petitioner was unable to appear before the Court and contest the pre-emption case resulting into passing of the impugned ex-parte order. Petitioner himself appeared in the Court and gave evidence on oath about his above sickness and inability to appeared in the Court and contests the case. The learned District Judge should have considered above illness of the petitioner as sufficient cause which debarred the petitioner from contesting the pre-emption case and allowed the Miscellaneous Appeal and provide an opportunity to the petitioner to contest above pre-emption case. But the learned District Judge committed a serious illegality and most erroneously dismissed above Miscellaneous Appeal which is not tenable in law.

Mr. Md. Tayeed Uddin Khan, learned Advocate for the opposite parties submits that the petitioner has claimed that serious Jaundice ailment prevented him from appearing in the Court and contesting the pre-emption case. But the petitioner could not produce an iota of evidence to substantiate above claim. The petitioner could not produce any medical certificate in support of above sickness nor the Doctor who

allegedly gave him medical treatment came to the Court and gave evidence in support of his above claim. On consideration of above facts and circumstances of the case and materials on record the learned District Judge has rightly dismissed the Miscellaneous Appeal and affirmed the judgment and order of the trial Court which calls for no interference.

I have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record.

It is admitted that the petitioner who was opposite party No.1 and the recipient of the impugned kabala deed entered appearance in above Miscellaneous Case No.4 of 2011 and submitted a written objection on 16.02.2012.

It is also admitted that the petitioner did not contest above Miscellaneous Case No.4 of 2011 which was allowed of ex-parte on 31.08.2014 and after about 11 months the petitioner filed Miscellaneous Case No.11 of 2015 under Order 9 Rule 13 of the Code of Civil Procedure on 23.07.2015.

It has been alleged that the petitioner became sick due to Hepatitis-B infection and was suffering from Jaundice and received treatment under Dr. Sheikh Faruk Ahmed.

In this case petitioner alone gave evidence as PW1 and reiterated above claim of ailment in his evidence. But above claim of the petitioner was not supported by any other documentary or oral evidence. The petitioner could not produce any medical certificate issued by Dr. Sheikh Faruk Aheed showing that the petitioner became sick due to Hepatitis-B infection and received treatment under him. The petitioner did not make any endeavor to bring above Doctor to Court to give evidence in support of his claim on consideration of above materials on record I hold that the concurrent findings of the learned Judges of the Courts below that the petitioner could not prove by legal evidence that he was seriously sick during the period from 05.06.2014 to 20.07.2015 and he was under treatment of Dr. Sheikh Faruk Ahmed and above sickness prevented the petitioner to contest above case is based on legal evidence on record. There is no allegation of misleading or non consideration of any material evidence against the learned Judges of the Courts below. As such this Court cannot in its revisional jurisdiction interfere with the above concurrent finding of fact arrived at by the learned Judges of the Courts below.

In above view of the materials on record I am unable to find any substance in this application under Section 115(1) of the Code of

Criminal Procedure and the Rule issued in this connection which is liable to be discharged.

In the result, the Rule is hereby discharged.

However, there is no order as to costs.

Send down the lower Court's records immediately.

MD. MASUDUR RAHMAN
BENCH OFFICER